

others, for capital Offences, in the Execution of their Duty, may be tried.

Bay, and it shall appear, by Information given upon Oath to the Governor, or, in his Absence, to the Lieutenant-governor of the said Province, that the Fact was committed by the Person against whom such Inquisition or Indictment shall be found, or against whom such Appeal shall be sued or preferred, as aforesaid, either in the Execution of his Duty as a Magistrate, for the Suppression of Riots, or in the Support of the Laws of Revenue, or in acting in his Duty as an Officer of Revenue, or in acting under the Direction and Order of any Magistrate, for the Suppression of Riots, or for the carrying into Effect the Laws of Revenue, or in aiding and assisting in any of the Cases aforesaid; and if it shall also appear, to the Satisfaction of the said Governor, or Lieutenant-governor respectively, that an indifferent Trial cannot be had within the said Province, in that Case it shall and may be lawful for the Governor, or Lieutenant-governor, to direct, with the Advice and Consent of the Council, that the Inquisition, Indictment, or Appeal, shall be tried in some other of his Majesty's Colonies, or in *Great Britain*; and for that Purpose, to order the Person against whom such Inquisition or Indictment shall be found, or against whom such Appeal shall be sued or preferred, as aforesaid, to be sent, under sufficient Custody, to the Place appointed for his Trial, or to admit such Person to Bail, taking a Recognizance (which the said Governor, or, in his Absence, the Lieutenant-governor, is hereby authorised to take), from such Person, with sufficient Sureties, to be approved of by the said Governor, or, in his Absence, the Lieutenant-governor, in such Sums of Money, as the said Governor, or, in his Absence, the Lieutenant-governor, shall deem reasonable, for the personal Appearance of such Person, if the Trial shall be appointed to be had in any other Colony, before the Governor, or Lieutenant-governor, or Commander in Chief of such Colony; and if the Trial shall be appointed to be had in *Great Britain*, then before his Majesty's Court of *King's Bench*, at a Time to be mentioned in such Recognizances; and the Governor, or Lieutenant-governor, or Commander in Chief of the Colony where such Trial shall be appointed to be had, or Court of *King's Bench*, where the Trial is appointed to be had in *Great Britain*, upon the Appearance of such Person, according to such Recognizance, or in Custody, shall either commit such Person, or admit him to Bail, until such Trial; and which the said Governor, or Lieutenant-governor, or Commander in Chief, and Court of *King's Bench*, are hereby authorised and empowered to do.

Governor to bind in Recognizances to his Majesty all Witnesses the Prosecutor shall desire to attend the Trial, &c. And shall appoint a reasonable Sum for the Expenses of every Witness, which the Collectors of the Customs are to pay. Witnesses to be free from all Arrests during their Journey to any Colony, &c. Persons brought before Justices, &c. accused of any capital Crime in the Execution of their Duty, to be admitted to Bail.

II. And, to prevent a Failure of Justice, from the Want of Evidence on the Trial of any such Inquisition, Indictment, or Appeal, be it further enacted, That the Governor, or, in his Absence, the Lieutenant-governor, shall, and he is hereby authorised and required, to bind in Recognizances to his Majesty all such Witnesses as the Prosecutor or Person against whom such Inquisition or Indictment shall be found, or Appeal sued or preferred, shall desire to attend the Trial of the said Inquisition, Indictment, or Appeal, for their personal Appearance, at the Time and Place of such Trial, to give Evidence: And the said Governor, or, in his Absence, the Lieutenant-governor, shall thereupon appoint a reasonable Sum to be allowed for the Expenses of every such Witness, and shall thereupon give to each Witness a Certificate, in Writing, under his Hand and Seal, that such Witness has entered into a Recognizance to give Evidence, and specifying the Sum allowed for his Expenses; and the Collector and Collectors of the Customs, or one of them, within the said Province, upon the Delivery of such Certificate, are and is hereby authorised and required, forthwith to pay to such Witness the Sum specified therein for his Expenses.

III. And be it further enacted by the Authority aforesaid, That all Prosecutors and Witnesses, who shall be under Recognizances to appear in any of his Majesty's Colonies in *America*, or in *Great Britain*, in pursuance of this Act, shall be free from all Arrests and Restraints, in any Action or Suit to be commenced against them during their going to such Colony, or coming to *Great Britain*, and their necessary Stay and Abiding there, on occasion of such Prosecution, and returning again to the said Province of the *Massachusetts Bay*.

IV. And be it further enacted by the Authority aforesaid, That all and every his Majesty's Justices of the Peace, and other Justices and Coroners, before whom any Person shall be brought, charged with Murder, or other capital Crime, where it shall appear by Proof, on Oath, to such Justices or Coroners, that the Fact was committed by such Person, either in the Execution of his Duty as a Magistrate, for the Suppression of Riots, or in the Support of the Laws of Revenue, or in acting in his Duty as an Officer of Revenue, or in acting under the Direction and Order of any Magistrate, for the Suppression of Riots, or for the carrying into Effect the Laws of Revenue, or in aiding and assisting in any of the Cases aforesaid, are hereby authorised and required to admit every such Person so brought before him or them, as aforesaid, to Bail; any Law, Custom, or Usage, to the contrary thereof in any-wise notwithstanding.

V. And be it further enacted by the Authority aforesaid, That where it shall be made appear to the Judges or Justices of any Court, within the said Province of *Massachusetts Bay*, by any Person, against whom any Inquisition or Indictment shall be found, or Appeal sued or preferred for Murder, or other capital Crime, that the Fact was committed by such Person, either in the Execution of his Duty as a Magistrate, for the Suppression of Riots, or in the Support of the Laws of Revenue, or in acting in his Duty as an Officer of Revenue, or in acting under the Direction and Order of any Magistrate, for the Suppression of Riots, or for the carrying into Effect the Laws of Revenue, or in aiding and assisting in any of the Cases aforesaid, and that he intends to make Application to the Governor, or Lieutenant-governor of the said Province, that such Inquisition, Indictment, or Appeal, may be tried in some other of his Majesty's Colonies, or in *Great Britain*, the said Judges or Justices are hereby authorised and required to adjourn or postpone the Trial of such Inquisition, Indictment, or Appeal, for a reasonable Time, and admit the Person to Bail, in order that he may make Application to the Governor, or Lieutenant-governor, for the Purpose aforesaid.

VI. And be it further enacted, That the Governor, or, in his Absence, the Lieutenant-governor, if he shall direct the Trial to be had in any other of his Majesty's Colonies, shall transmit the Inquisition, Indictment, or Appeal, together with the Recognizances of the Witnesses, and other Recognizances, under the Seal of the Province, to the Governor, or Lieutenant-governor, or Commander in Chief of such

If the Governor directs the Trial to be in any other Colony, he is to transmit the

Where Persons are found to have committed Crimes, and desire to be tried in another Colony, Justices to postpone their Trial, &c.